

On the practical implementation of Plan S

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A coalition of funders from across Europe has proposed a bold initiative, called [Plan S](#), to [push towards OA for 2020](#). It includes the following 10 points:

- Authors retain copyright of their publication with no restrictions. All publications must be published under an open license, preferably the Creative Commons Attribution Licence CC BY. In all cases, the license applied should fulfil the requirements defined by the Berlin Declaration;
- The Funders will ensure jointly the establishment of robust criteria and requirements for the services that compliant high quality Open Access journals and Open Access platforms must provide;
- In case such high quality Open Access journals or platforms do not yet exist, the Funders will, in a coordinated way, provide incentives to establish and support them when appropriate; support will also be provided for Open Access infrastructures where necessary;
- Where applicable, Open Access publication fees are covered by the Funders or universities, not by individual researchers; it is acknowledged that all scientists should be able to publish their work Open Access even if their institutions have limited means;
- When Open Access publication fees are applied, their funding is standardised and capped (across Europe);
- The Funders will ask universities, research organisations, and libraries to align their policies and strategies, notably to ensure transparency;

- The above principles shall apply to all types of scholarly publications, but it is understood that the timeline to achieve Open Access for monographs and books may be longer than 1 January 2020;
- The importance of open archives and repositories for hosting research outputs is acknowledged because of their long-term archiving function and their potential for editorial innovation;
- The ‘hybrid’ model of publishing is not compliant with the above principles;
- The Funders will monitor compliance and sanction non-compliance.

I here set out some of the practical challenges and concrete steps to implementation that I believe could help or hinder each of the points. Of course, this post is somewhat speculative since we have but very few details on Plan S.

1. Authors retain copyright of their publication with no restrictions. All publications must be published under an open license, preferably the Creative Commons Attribution Licence CC BY. In all cases, the license applied should fulfil the requirements defined by the Berlin Declaration. In implementation of this stage, Funders should take care to specify exactly which rights will be retained by an author, although the CC license will mitigate any problems here anyway. I only note this since, at present, some publishers allow authors to “keep” their copyright while demanding that authors sign over all exclusive rights. It is also the case that different institutions and emerging processes (such as the UK SCL) have different conditions around copyright retained by researchers. For instance, most UK institutions, in theory, have a legal right to works created by employees (academics) in the course of their employment (research work). By custom or by institutional rules, these rights are usually de facto or de jure reverted back to authors, but there is no guarantee of this. Also, whether funders issue grants to institutions or to authors should be considered in the implementation of this step. Upon whom should sanctions fall (researchers or universities)? Care around *who* retains rights in this clause is important.

There is also a contradiction in the Plan S document around licensing here that needs to be resolved. Namely, [the document states](#) that “Plan S whereby research funders will mandate that access to research publications that are generated through research grants that they allocate, must be fully and immediately open and cannot be monetised in any way”. This rules out the CC BY

license, since this allows subsequent commercial re-use (even just for dissemination). However, it is debatable whether the CC BY-NC license is compatible with the Berlin Declaration. This should be clarified as a matter of urgency.

2. The Funders will ensure jointly the establishment of robust criteria and requirements for the services that compliant high quality Open Access journals and Open Access platforms must provide. I am wary here of the discourse around “high quality” Open Access journals and also the potential normalisation of certain standards or practices of peer review. If these criteria are too rigid, it will stifle innovation (i.e. if you state that certain pre-review practices are necessary to ensure high quality). Further, if we assess work at the *journal* level by dubbing journals “high quality”, we run into a heap of financial and academic problems. It would also work directly against the principles of the San Francisco Declaration on Research Assessment (DORA), to which several Plan S funders (such as Research England, I believe), are signatories. We should be pushing for quality to be assessed at the article level with technical infrastructural (rather than quality mechanisms) being ascribed at the journal level. That said, high quality could be fulfilled by suggesting that publishers adhere to Committee on Publication Ethics (COPE) best practices or other membership organization guidelines.

3. In case such high quality Open Access journals or platforms do not yet exist, the Funders will, in a coordinated way, provide incentives to establish and support them when appropriate; support will also be provided for Open Access infrastructures where necessary. This seems to me to be the threat against the status quo. That is, if publishers do not react, Funders will establish their own compliant venues. Drawing on the advice of Wellcome in how they fared establishing Wellcome Research Online would here be interesting and important. I would also like to know, though, how the ORE initiative fits into this bracket as presumably this trans-disciplinary space will be compliant. This would surely mean that it would never be the case that such “platforms do not yet exist”.

4. Where applicable, Open Access publication fees are covered by the Funders or universities, not by individual researchers; it is acknowledged that all scientists should be able to publish their work Open Access even if their institutions have limited means. This is a good principle. Again, though, care should be taken not to normalize any one particular model for open-access

publication. Several important reports in the monograph space – such as [the Crossick Report](#) – have emphasized the need for diversity of business models. This principle should not, then, in the implementation phase, focus on APCs or BPCs as necessarily the only route to OA. Further, if institutions have limited means and cannot afford to publish their researchers' work in a supply-side-type payment system, then Funders are going to need to hold reserves to cover this; particularly in concentrating models such as [humanities monographs](#). This is because since, if the APC/BPC cap implied below is put into effect on the basis of a cost-transparency model, it will be hard for publishers to build waiver reserves (plus the fact that trust levels between institutions and publishers in demonstrating whether they have “limited means” are not good; institutions can just de-fund their libraries and then say “we have limited means”, for example). A robust criteria for affordability and institutional demonstration of “limited means” needs, therefore, to be developed.

5. When Open Access publication fees are applied, their funding is standardised and capped (across Europe). OK, this is the really difficult one. [How much it costs to run a publisher](#) varies hugely between types of institution and levels of cross subsidy. For instance, Oxford UP makes a lot of money from selling textbooks, which allows it to enact some degree of cross-subsidy to its research monograph list. However, if that revenue dries up (say, the OER movement succeeds in getting all textbooks made free and open), then the OA/research publication costs go up. There are also economies (and dis-economies) of scale. However, it is also clear that some publishers are really having a laugh with their profit margins (Elsevier: 36% margin [according to Thibalt, Harnad, and Raz](#)).

In short, what you really want is a cap developed on a cost-transparency basis. Publishers will not be keen to provide these data, though, since they are commercially sensitive. There is also the interesting phenomenon of the “race to the cap”. That is, if you impose a “cap”, any publisher whose costs are currently *below* that cap will *raise* their price to the cap level. In effect, then, the cap is not really a cap; it's a determined price point. (You can also see this in the £9,000 cap on tuition fees in the UK, charged by almost all universities, regardless of their standing or costs.) To avoid this race to the cap, you need to have a price-pressure incentive for publishers to *beat* the cap. What is the incentive to be for publishers to charge *less* than is specified? Well, one way you could do it is by awarding the *difference* (or even double the difference) between the cap and the cost back to researchers or universities. This would introduce a degree of price sensitivity into the system. This

is necessary because, at present, there is no real incentive for researchers to choose a cheaper venue; their incentive is the prestige of the publication venue. That is, if researchers or universities were rewarded for choosing publishers that were cheaper, the symbolic economy of prestige would be altered.

I would also like to see some documentation on preceding instances of price capping across Europe (say, on mobile roaming charges) and to know how they fit with various aspects of competition law. While, technically, there is no pressure on publishers to change – only for researchers to publish in compliant venues – the reality of the soft-power economics is very different.

6. The Funders will ask universities, research organisations, and libraries to align their policies and strategies, notably to ensure transparency. I am not sure entirely to what this refers, but it could be a good opportunity to push DORA and other declarations on good research evaluation practice. It would also be a nice opportunity to use this to coordinate on subscription cancellations to enable the diversion of funds into open access.

7. The above principles shall apply to all types of scholarly publications, but it is understood that the timeline to achieve Open Access for monographs and books may be longer than 1 January 2020. This somewhat kicks the can down the road, but the state of OA monographs at present is far from fully developed. I would suggest that a concrete deadline for this should be put in place, or everyone will just assume that it doesn't apply to them. For instance, I am currently working on books and signing contracts for them for titles that won't be published until 2022. Some have even longer lead times on advance contracts.

Although this provision mentions monographs, I also wanted to hear more about other different types of publication to which this might apply. For instance: software.

8. The importance of open archives and repositories for hosting research outputs is acknowledged because of their long-term archiving function and their potential for editorial innovation. This is a nice nod to green OA, but we need an official statement from Plan S specifying under what conditions green OA is acceptable to Plan S. Can a researcher publish in a hybrid (or even subscription/toll access) journal provided that they deposit the AAM with an open license and no embargo? If the UK REF is to be involved in Plan S (it's not owned exclusively by

Research England, but also by the devolved administrations, so there is no way of knowing, until we get the review of OA that's due some time next year, whether it's in or out), this would probably be the easiest path to compliance: drop the embargo period to zero and insist on a CC license. As far as I know, there is no robust evidence of what a green transformation at this scale would do to publisher business models. My guess is that it would cause substantial disruption and drive many to gold OA models.

9. The 'hybrid' model of publishing is not compliant with the above principles. This statement will need care in implementation, particularly in its synthesis with point 8 (i.e. is publishing in a subscription journal, but depositing under Plan S conditions acceptable?) The other way that publishers might try to get around this is by "splitting" a title into two components with similar names ("Nature Open" and "Nature Classic"), allowing them to continue publishing subscription for the "classic" title while only making European/Plan S researchers OA. There could even be a common submission portal that just filters the user to the "correct" journal for their compliance status. In other words: this provision looks to me as though it is supposed to wipe out subscriptions for good. However, there is a range of perverse unintended behaviours that could arise if care isn't taken in how to define "hybrid" here. If the definition is "the journal publishes articles that are not compliant with Plan S under the same journal name", then there are ways publishers may get around it to continue subscriptions. If the definition is that hybrid journals "take subscription revenue", then membership business models for OA may look "hybrid".

10. The Funders will monitor compliance and sanction non-compliance. This is good to hear and is what is needed. Without some form of sanction, preferably financial for future grants/funding clawback, the Plan is toothless. While there is much debate about how good it is for researchers to first encounter OA within contexts of "compliance", as opposed to seeing the public good of open access, if this mandate seeks to accelerate change, it really needs to hurt institutions and researchers who choose to ignore it. Certainly we should celebrate open access for its public good benefits, which are substantial, but, to quote Roosevelt, it can pay to "speak softly and carry a big stick".

Academic freedom should also be considered here and I would like a detailed statement on how the demands of Plan S interact with legal and cultural norms of academic freedom to select a publication venue. Laws and customs vary enormously around the world (in the UK, for instance, there is no legal statute that confers an explicit right of researchers to select publication venue, but in the States this is more thoroughly encoded).